

## 22STCV04376 22STCV04376

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-08

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Case Number: 22STCV04376 Hearing Date: September 8, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 8,

2026 TRIAL

DATE: Trial complete

CASE: Pittleman, et al. v. Spina Organics,  
LLC, et al.

CASE

NO.: 22STCV04376

MOTION TO

AMEND JUDGMENT

MOVING PARTY/PARTIES: Plaintiffs and Judgment Creditors Ellen  
Pittleman and Hybrid Entertainment, Inc.

RESPONDING PARTY/PARTIES: Defendant  
Spina Organics and Mauro, Inc.

PROOF OF SERVICE:

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Correct Address: Yes.

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Served electronically on March 20,  
2026 for a hearing date of September 8, 2026.

#### CASE HISTORY:

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February 3, 2022: Complaint filed.

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November 19, 2024: Court trial  
commenced.

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March 3, 2025: Court trial  
completed.

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May 29, 2025: Judgment entered in  
favor of Plaintiffs in the amount of \$251,235.21.

#### STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

##### Plaintiffs and Judgment Creditors

Ellen Pittleman ("Pittleman") and Hybrid Entertainment, Inc. (collectively, "Plaintiffs") prevailed at trial against Defendants and Judgment Debtors Spina Organics, LLC ("Spina Organics") and Mauro Spina ("Spina," collectively, "Defendants"). Plaintiffs filed and served a supplemental declaration in support of the motion on August 18, 2026 by email. That is not sufficient notice. (Code Civ. Proc., § 1005, subd. (b).) Accordingly, the Court disregards the supplemental declaration. Plaintiffs seek to add Mauro Inc. as an additional judgment debtor because Plaintiffs contend Mauro Inc. is the alter ego of Spina Organics. Spina Organics and Mauro, Inc. filed an opposition on August 31, 2026, five court days before the hearing date. Given the hearing date of September 8, 2026, any opposition was due no later than August 25, 2026. (Code Civ. Proc., § 1005, subd. (b).) The Court therefore disregards the untimely opposition. (Cal. Rules of Court, rule 3.1300, subd. (d); Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210.) Furthermore, it is unnecessary to consider the opposition because, as discussed below, Plaintiffs' motion fails as a

matter of law.

#### TENTATIVE RULING:

Plaintiffs'

motion to amend judgment is DENIED.

Moving

party to give notice.

#### DISCUSSION:

Motion to amend judgment

In their notice of motion,

Plaintiffs cite *Gopal v. Kaiser Foundation Health Plan, Inc.* (2016) 248

Cal.App.4th 425 and Code of Civil Procedure section 187 as authority for this

motion. The Court cannot grant relief

based on authority other than that cited in the notice of motion. (See Code Civ. Proc., § 1010; Cal. Rules of

Court, rule 3.1110, subd. (a); *People v. American Sur. Ins. Co.* (1999)

75 Cal.App.4th 719, 726.) In *Gopal v.*

*Kaiser Foundation Health Plan, Inc.* (2016) 248 Cal.App.4th 425, the Court

explained that if joint enterprise or alter ego liability applies when persons

use a corporate form to perpetrate fraud, circumvent a statute, or accomplish

some other wrongful or inequitable purpose. Under these circumstances, the Court may then

disregard the corporate entity and treat the corporation's acts as if they were

done by the persons controlling the corporation. (*Gopal v. Kaiser Foundation Health Plan,*

*Inc.* (2016) 248 Cal.App.4th 425, 431.) *Gopal v. Kaiser Foundation Health Plan,*

*Inc.* (2016) 248 Cal.App.4th 425 is not authority for post-judgment

amendment.

Under Code of Civil Procedure

section 187, the Court may amend a judgment to add an additional judgment

debtor who is the alter ego of the original judgment debtor. (See *Angel Lynn Realty, Inc. v. George*

(2025) 114 Cal.App.5th 655, 659-660.) However,

as Plaintiffs acknowledge, Spina was a party to this litigation. The Court granted Spina's motion for judgment

under Code of Civil Procedure section 631.8 on the basis that Plaintiff failed

to show Spina is the alter ego of Organics. As such, what Plaintiffs seek is reverse veil

piercing to hold Mauro Inc. liable for the judgment against Spina Organics. The Court may use reverse veil piercing to

add a nonparty limited liability company to satisfy the debts of an individual

with the assets of the limited liability company of which the individual is an insider. (Curci Investments, LLC v. Baldwin (2017) 14 Cal.App.5th 214, 222.) However, California law does not permit reverse piercing of the corporate veil. (Postal Instant Press v. Kaswa Corp. (2008) 162 Cal.App.4th 1510, 1520-1521.) As such, Plaintiffs must proceed via normal judgment collection procedures.

Accordingly,  
Plaintiffs' motion to amend judgment is DENIED.

Moving  
party to give notice.

IT  
IS SO ORDERED.

Dated: September 8, 2026 \_\_\_\_\_

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at [SMCDept415@lacourt.ca.gov](mailto:SMCDept415@lacourt.ca.gov) by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.